

Penalties for Fair Housing Violations in Michigan

The Fair Housing Act is enforced through the Department of Housing and Urban Development (HUD). HUD responds to consumer complaints, and, if merited, will refer the case to an administrative law judge, at which point it may be heard in a federal civil court if the complainant wishes. Fines levied by the civil court may include civil penalties up to \$21,039 for a first offense, \$52,596 for a subsequent violation within five years, and \$105,194 if two or more violations occur within a seven-year period.

Complainants may choose to bypass HUD and have the case heard by a federal district court. This must occur within one year of the alleged violation. If a complaint has been filed with HUD, the deadline for a civil suit is two years and may be filed as long as the complainant hasn't signed a conciliation agreement or the administrative hearing hasn't begun. If the court finds in favor of the complainant, it may:

- Issue an injunction against the violator.
- Award actual and/or punitive damages without limitation.

In addition, the U.S. Attorney General/Department of Justice may file a civil suit in a U.S. District Court if it believes that a pattern of discriminatory practice exists. The court may:

- Issue an injunction against the violator
- Impose fines of as much as \$50,000 for a first offense or \$100,000 for subsequent violations

In Michigan, complaints of violations of the Human Rights Act can be filed with the Michigan Civil Rights Commission. To meet the deadline for filing, the complaint must be filed within 180 days of the alleged violation. Filing can occur as a complaint to the Michigan Civil Rights Commission, a complaint to a local commission on human relations, or through a private civil lawsuit. The Michigan Civil Rights Commission investigates and holds hearings on matters of unfair housing practices and orders remedial actions that may include:

- Requiring changes in policies and practices
- Injunctive relief given to the complainant
- Assessing compensatory damages and reimbursement of attorney's fees
- Imposing civil fines and penalties of as much as:
 - \$10,000 for first offenses
 - \$25,000 for a subsequent offense within a five-year period
 - \$50,000 for two or more offenses in a seven-year period

If a case is dismissed, the person against whom the complaint was filed can request that the complaining party pay actual court and attorney fees or ask for an injunction to prevent the sale of property.